

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

As prayed, put up day after tomorrow i.e. 22.3.2012 as a fresh case.

Order Date :- 20.3.2012

T. Sinha

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

As prayed , put up as fresh on 27.3.2012 showing the name of Sri Subhash Gosain as counsel for the respondents.

Order Date :- 22.3.2012

V.Sri/-

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla, Subhash Gosain

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

As prayed by Sri Saurav Pathak put up day after tomorrow as fresh.

Order Date :- 27.3.2012

mt

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla, Subhash Gosain

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

Counter affidavit filed today be taken on record. As prayed rejoinder affidavit be filed within three days. Put up as a fresh case on 4th April, 2012.

Order Date :- 29.3.2012

mt

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla, Subhash Gosain

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

Rejoinder affidavit filed today be taken on record.

On the request of Shri Subhash Gosain, learned counsel for the respondent, put up day after tomorrow i.e. 6.4.2012 as a fresh case in order to enable him to find out as to how the provisional assessment order was served upon the petitioner.

Order Date :- 4.4.2012

T. Sinha

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla, Subhash Gosain

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

As prayed, put up as fresh on 10.4.2012.

Order Date :- 6.4.2012

V.Sri/-

Court No. - 21

Case :- WRIT - C No. - 13606 of 2012

Petitioner :- Mohan Bajpai

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Brij Raj Mishra, Saurav Pathak

Respondent Counsel :- C.S.C., Anubhav Shukla, Subhash Gosain

Hon'ble R.K. Agrawal, J.

Hon'ble Vinay Kumar Mathur, J.

Sri Subhash Gosain, learned counsel appearing for respondent nos. 2 to 4 has stated that a copy of the provisional assessment was sent by ordinary post to the petitioner. The service of documents sent by ordinary post cannot be presumed to be sufficient. as it does not conform to Clause 9.3 of U.P. Electricity Supply Code, 2005. However, a copy of the provisional assessment has been filed along with counter affidavit and has been served upon the learned counsel for the petitioner. We, therefore, dispose of the writ petition with the direction to file his objections to the provisional assessment issued within fifteen days and if such an objection is filed the same be decided in accordance with law within a month thereafter. Needless to say, till the decision of the objections the respondents cannot proceed to recover the amount.

Order Date :- 10.4.2012

mt